

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN KENYA

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

It usually starts small. Survey crews show up and hammer painted beacons into the ground near your village. A meeting gets held somewhere far off, in the wrong language, that almost nobody hears about until it's over. Machines arrive. Or word gets around that some company nobody's ever heard of has been handed a permit to build on the coast, the forest, the grazing land, the river — the place your family has lived from for generations — and that the decision got made in a Nairobi office by people who never set foot there and never really asked you.

When that happens, remember this: **a handful of fishing villages on the coast took on a billion-dollar coal plant, and they beat it.**

A company called Amu Power wanted to build a giant coal-burning power station — 1,050 megawatts — at Kwasasi in Lamu County, right by an archipelago whose old town is a UNESCO World Heritage Site and whose mangroves, seagrass and reefs feed the fishing and the tourism that people there live on. The plant would have cost about two billion dollars. In 2016, NEMA — the national environment agency, the body that's supposed to check projects like this — gave the company its permit anyway. So the community got organized. Forty-odd local groups joined together as Save Lamu, teamed up with the national anti-coal campaign deCOALonize and public-interest lawyers from Katiba Institute and Natural Justice, and they challenged the permit. On 26 June 2019 they won: a special environmental court called the National Environment Tribunal threw the permit out. The study behind it was garbage, the court said, and the company had never genuinely asked the people who lived there — so the permit was no good, and if anyone wanted to try again, they'd have to start the whole study over. Amu Power appealed. It lost again: a higher court — the Environment and Land Court, sitting in Malindi — backed the cancellation in October 2025, ruling the sloppy process had trampled the people's constitutional right to a clean and healthy environment. A worry that started on a remote stretch of coast ended up as a ruling the whole country now stands on.

What makes it possible is that Kenya handed ordinary people some unusually sharp tools. When Kenyans rewrote their Constitution in 2010, they put it in plain words: **every person has a right to a clean and healthy environment**. And — this is the part that shocks people from other countries — **you don't have to prove the project is going to hurt you**. Any Kenyan can walk into court to defend the environment, even for a place they've never been. The same Constitution says the public has to be genuinely **consulted** before big decisions, protects **community land**, and gives you a right to see government papers. Under it sit the tools you'll actually use: a **permit system** every big project has to pass, a **tribunal** that can tear a permit up, a **court built just for land and environment fights**, a law protecting **community land**, and an **access-to-information law** that forces the government to hand over its records. On top of that, Kenya has loud, fearless civil-society groups and a free press; marching, petitioning, and going to court are all legal. Very few communities anywhere get to fight with a kit this full. But these tools have real limits, and this guide states them plainly: the Lamu fight took the better part of ten years, and it was uphill the entire way, because the government wanted the plant. It was a flagship project; the permit was handed out over the community's objections; and the win only became solid years later, after the appeal. Not everyone has the allies Lamu

had, or ten years of fight in them, and plenty of projects in Kenya go ahead over local objections when the study is honest and the state is determined. So go in clear-eyed — but go in knowing it can be done.

The Whole Strategy in One Idea

A big project looks like one enormous, unstoppable thing. It isn't. It's a chain — a long line of permissions and approvals and money, each link depending on the one before it. And a chain doesn't need to be lifted; it just needs to break at one weak link.

So here's the whole game: a project in Kenya needs an environmental permit from NEMA. It needs to have genuinely consulted the public, because the law demands it. If it's on community land, it needs the community's consent. It has to survive the tribunal and the courts. It has to withstand the newspapers. **Every one of those is a link you can grab.** Your job isn't to fight the whole project at once — it's to find the one link closest to your hand and pull on it. At Lamu the weak link was the study and the fake consultation. For you it might be the same, or it might be your community land, or the right any citizen has to go to court, or simply the glare of publicity a project can't hide from. Find your link. That's the work.

Be Honest About Which Fight You're In

Before you spend a year of your life on this, figure out which situation you're actually in, because it changes what "winning" looks like:

- **If the study is genuinely bad, or the consultation was a sham, and you can reach the tribunal, the courts and the press — Kenya's tools really bite.** Lamu is the proof: a flawed process sank even a flagship coal plant.
- **If the government is dead set on the project, the study was done properly, and the fight is going to take years — an outright kill is hard, and pushing back can cost you.** The tools still matter. But aim honestly: a permit cancelled or loaded with conditions, years of delay that bleed the project, real safeguards, and public exposure are all real wins, even when a clean stop isn't on the table.

Read this whole guide once before you do anything — especially the legal, organizing and "when the system's rigged" parts. And hold onto two habits the whole way through. First, **use the rights the law actually gives you** — the consultation, the citizen's right to court, the community-land consent. They're real, and half the job is just insisting they be honored. Second, **do everything at once, not one thing at a time.** The papers, the permit challenge, the courts, the press — each one is weak alone and strong together. That's exactly how Lamu was won.

HOW THE SYSTEM WORKS

To break the chain, you have to see it. Here's who decides, how a project moves from paper to bulldozer, where the money comes from, and who's supposed to be watching.

Who Actually Decides

Push in the wrong place and you waste months, so know who holds each decision. **NEMA**, the national environment agency, runs the permit system — it's the one that says yes or no to the environmental permit. **The county government** controls local planning, land use and a lot of local approvals. **Sector regulators** — for energy, mining, water, ports — hand out their own permits. And if it's community land, **your community itself** holds a consent the project legally needs. So work out which of these holds the decision you can actually challenge — the permit is NEMA's, the local approvals the county's, community land your community's — and push there.

How a Project Moves — and Where You Jump In

A big project walks through the same stages nearly every time, and each stage is a door you can put your foot in.

First, the company files a short report and NEMA decides how hard to look. NEMA reads a "project report" and decides whether the project needs a full environmental study or can skate through on the short version. *Your opening:* a project that obviously needs the full study getting waved through on the short one.

Then comes the full study — and the meetings. For anything serious the company's hired expert writes a full environmental impact assessment — a study of what the project will do to the land, water, air, health and livelihoods — and the law says that while they're writing it, they have to seek out and hear the people who'll be affected — by law that means advertising the project in posters, newspapers and on radio and holding **at least three public meetings** with the affected community, not one. *Your opening:* whether that study is honest about your fishery, your health, the climate — and whether the consultation was real. And here's a gift Lamu handed you: **one token meeting at the very start doesn't count.** The company can't hold a single early gathering, tick the box, and move on. The law wants them to genuinely hear affected people *during* the study. When Amu Power tried to lean on an early meeting, the court said no. That distinction has teeth.

Then NEMA grants the permit. NEMA reads the study and either refuses the permit, grants it, or grants it with conditions attached. *Your opening:* a permit built on a bad study or a fake consultation can be torn up by the tribunal — that's exactly what happened at Lamu.

Then come the other approvals, and the land. Sector permits, buying or taking the land, using community or public land, lining up the financing. *Your opening:* community-land consent, the land deal, and the use of protected or public land are all things you can contest.

Finally they build and run it. *Your opening:* if it breaks the conditions on its permit, that's leverage — and the citizen's right to court means anyone can go to a judge to stop harm that's actually happening.

Follow the Money and the Permissions

Three things are worth digging up, because they tell you where to push.

Who's really behind it, and who owns them? Company records and any stock-market filings show you the real players and whether the state is a partner. That tells you how much they care about their reputation — which tells you how much public pressure will sting.

What do they still need that they don't have yet? A permit not granted yet or under challenge, consent they haven't gotten, land they haven't bought, money they haven't closed — whatever's still missing is where they're weakest. A project waiting on its permit is far easier to stop than one already pouring concrete.

Who's paying? Big Kenyan projects usually lean on foreign banks, export-credit agencies and development lenders — and a lot of those have their own environmental and climate rules, and complaint channels you can go to directly. A coal plant especially is swimming against a global tide of banks and insurers fleeing coal. Sometimes the weakest link in the whole chain isn't a Kenyan permit at all — it's a financier who'd rather walk away than take the heat.

Who's Supposed to Be Watching

Each of these is either an ally or a place to make your stand. **NEMA and the county environment committees** run the permit system and can be pushed — loudly, in writing, in public — to actually enforce it.

The National Environment Tribunal hears you when you say a permit was wrong and can cancel it. **The Environment and Land Court**, a full court just for land and environment, sits above the tribunal. **The National Environment Complaints Committee** (the old Public Complaints Committee) takes environmental complaints for free — a low-cost first move that gets your grievance onto the official record — and you can report pollution or illegal works straight to NEMA on its incident line, **0786 101 100**, or **incidence@nema.go.ke**. **The Office of the Auditor-General** matters when public money is involved, because a damning audit of a project's costs can knock the political legs out from under it. And Kenya's **public-interest lawyers, human-rights groups, environmental campaigns and community-land organizations** are your fastest route to lawyers, scientists and national attention — that mix of local community, national campaign and free legal help is exactly what carried Lamu.

QUICK REFERENCE: SUCCESS RATES

Before you pour months into this, size up the odds honestly. These numbers aren't promises — they're rough patterns from how fights like yours have gone, not a lab experiment. What really moves them: whether the study is genuinely flawed or the consultation was fake, whether community land or a protected place is involved, whether you can get to the tribunal and the courts, and how badly the government wants the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	1–3 mo	low	The base for everything else
Speak up in the consultation	15–35%	during the study	low	On the record; conditions or a redo
Appeal the permit to the tribunal	30–55%	6–30 mo	low–mod	Permit cancelled; study forced to restart
Take it to court as a rights case	25–45%	12–36 mo	mod	Right enforced; project halted or reviewed
Assert your community-land consent	25–50%	6–36 mo	low	Consent required; project stalled or moved
Pry loose records that expose defects	15–35%	1–6 mo	low	The proof that grounds every move
Document a broken permit condition	25–45%	3–18 mo	low	Breach exposed; possible penalty
Big, connected public campaign	25–45%	6–36 mo	low	Political cost; project reconsidered
Everything together (real defect, world watching)	45–65%	12–36 mo	low–mod	Cancelled, stalled, delayed, changed
Everything together (state-backed, clean process)	20–40%	12–48 mo	low–mod	Delayed, conditioned, exposed

The two tools that move the needle most are **the tribunal** and **the citizen's right to court**, backed up by a fake consultation, your community-land consent, and public heat. Lamu shows the best case — a flagship's permit torn up and the cancellation upheld — and the worst — ten years against a government that wanted it built. Most fights land in between, and the honest lesson is that Kenya's rights are real and have killed projects outright, but against a determined government with a clean process the realistic win is often a

permit loaded with conditions, delay, safeguards and exposure rather than a clean, permanent kill.

It doesn't take money to start. Speaking up, gathering papers and organizing are nearly free, and public-interest lawyers have carried community cases all the way to the courts for nothing — that's who stood with Save Lamu. What money buys, and what most changes the outcome, is committed legal help and a campaign that can go the distance.

STEP 1: TARGET IDENTIFICATION

Being angry at "the project" is weak. Being specific — this permit, this decision, this defect — is strong. So pin it down. Answer these five questions in writing, as fully as you can, because the answers hand you your plan.

1. What is it, exactly, and who's behind it? Name the project, the company, its owners and parent company, and anyone financing it. A foreign-financed project opens up pressure on lenders and investors. A project on community land opens up your consent rights. The details decide which tools you reach for.

2. Where exactly is it, and what does it touch? Get the boundaries and lay them over what you know: is it on community land, near a forest, a wetland, the sea, a protected area, a heritage site like Lamu's old town, a fishery, grazing land, farmland? This map is the single most valuable thing you can make, because Kenya's sharpest tools switch on the moment a project touches exactly these things.

3. What stage is it at, and what decision is coming next? Has the short report gone to NEMA? Is the full study underway — are the meetings scheduled or already past? Is the permit granted? This matters because the doors — the consultation, and especially the roughly 30 days you get to appeal a permit — slam shut fast.

4. What does it still need that it doesn't have? A permit not granted yet, consent it hasn't gotten, land it hasn't bought, money it hasn't locked in. Whatever's missing is the soft spot. A project still waiting on something is far easier to stop than one already built.

5. Who else is in this with you? The other fishers, herders, farmers, the next village over, local leaders, lawyers already worried. You are almost never alone — Save Lamu was forty groups. Knowing who shares the stake tells you who your coalition can be.

What this looks like in real life. Say a fishing village learns a big power plant has been permitted right off their shore — next to the reefs and mangroves they fish and a heritage town that brings tourists. Work the five questions and a picture snaps into focus: a named company, maybe with foreign money, holds the permit; the site sits right on the fishery and the heritage coast the village lives from; NEMA granted it but the meetings were thin and the study barely mentioned the fishing or people's health; the project needs a permit that would actually hold up (this one won't) and financing that bad press could scare off; and there's already a knot of local groups, fishers' associations, lawyers and a national anti-coal campaign ready to move. Now the strategy writes itself — it's the Lamu pattern — and it's the exact spot Lamu stood in before it won.

STEP 2: DOCUMENTATION

Here's the difference between a village that can fight and one that can't: proof. Dates, records, photographs, official papers. A community that can show what's happening gets taken seriously by NEMA, the tribunal, the courts and the press. A community with only fear and rumor gets brushed aside. Build your proof in three layers.

Layer one: the paper trail. Get the papers the project and the government generate — the short report, the full environmental study, the record of those consultation meetings, the permit and the exact conditions on it, the county approvals, and any land or protected-area documents. Where to get it: NEMA publishes EIA study reports and licences on its website, nema.go.ke (look under EIA/SEA reports and the public-comment listings), and you can ask for the file in person at NEMA's head office (Popo Road, South C, off Mombasa Road, Nairobi) or your county NEMA office. Anything they won't hand over, you force loose with an access-to-information request (see 8A). This is the government's and the company's *own* paperwork, turned around and used against their decision.

Layer two: what your own eyes see. Photographs and video, every one stamped with a date and a location — the site, the shoreline, the mangroves, the clearing. Pictures taken *before* the damage are gold. Add written statements from named families about exactly what they stand to lose: the fishing, the land, the water, their health.

Layer three: the map of your rights. Lay the project over your community land, the forests, wetlands, the sea, the protected and heritage areas — so anyone can see, at a glance, every legal tripwire it crosses. When you walk in carrying the study, the consultation record, the permit conditions and a map of your land and rights, you stop being a nuisance and start being a threat.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The environmental study, the short report, the consultation record, the permit and its conditions** — download from nema.go.ke or ask NEMA (head office on Popo Road, South C, Nairobi, or your county NEMA office). To force out anything withheld, send a written access-to-information request to the body's information officer (8A); by law they have **21 days** to answer, and if they refuse or go silent you can complain for free to the **Commission on Administrative Justice / Office of the Ombudsman** (ombudsman.go.ke), which can order the records released.
- **County planning and land-use approvals, land documents, protected-area designations** — from the county and the land registry (8B).
- **Who owns and who's paying** — company records, stock-market filings, and any lender or export-credit-agency papers.
- **The rights map** — your community-land registration and the forest, wetland, sea and heritage designations, laid over the site.
- **Dated pictures and named testimony** — photographs marked with date and place, and statements from the families who'll be hit.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case. People give you power. In Kenya, where whole communities have taken on flagship projects and won, a well-built coalition is the engine of the whole thing. Build it in four moves.

Start with a tight core. A small, committed group: the families most directly in the path, the fishers, herders or farmers who know the land and water, and a few trusted, tireless organizers — and make sure it includes people whose word carries weight locally, the respected elders and leaders. The affected community's own voice is your greatest asset; the core exists to organize around it, not to speak over it.

Widen the circle. From that core, pull in the surrounding villages, the fishers' and herders' associations, the neighbors, the local groups. Hold meetings where people can actually see the evidence — the map of the

plant sitting on top of the fishery, the study, the permit conditions — and understand plainly what's coming and what they can legally do about it. You want a whole community that can speak with one voice, in the consultation, in the tribunal, in the press. Numbers protect you: Save Lamu was forty groups, and a fight that visibly involves a whole region is much harder to wave away than one blamed on a few troublemakers.

Bring in the allies and the experts. This is Kenya's edge, so use it fast: a thick web of environmental groups, public-interest lawyers and human-rights organizations who do this for a living — and these are real outfits you can actually call. **Katiba Institute** and **Natural Justice** are the very lawyers who beat the Lamu permit; the **deCOALonize** campaign carries fights like this nationally; **Kituo cha Sheria** gives free legal aid; and the **Law Society of Kenya** can point you to an environmental advocate. Public-interest lawyers have dragged NEMA permits to the tribunal and rights cases to court, like they did at Lamu. National campaigns like deCOALonize carry a local fight across the country and the world. Scientists and health experts can take apart a dishonest study and turn your objection into hard evidence. Bring them in as partners, hand them your documents, let their experience shape the plan.

Build something that can last. A fight against a big project is long — Lamu ran for years, through a ruling and an appeal. So build to endure: clear roles, a secure shared archive, a way to make decisions, a way to keep the wider community in the loop, and a plan for the toll it takes — emotional, financial and legal. Talk about risk up front, because defenders in Kenya have faced intimidation, and go in with your eyes open, your solidarity solid and a lawyer within reach. Endurance is itself a weapon: a government-backed project is betting you'll get tired, and the coalition that outlasts that bet is the one that sees the case through the tribunal, the appeal and the long grind — the way Lamu did.

STEP 4: LEGAL CHALLENGES

Law is one of Kenya's real weapons — maybe the sharpest — because the Constitution protects the environment more fiercely than most, and there's a tribunal and a court built to enforce it. Here are the routes, and their limits, straight.

The Tribunal That Can Tear Up a Permit

The most important legal fact for any Kenyan community is this: there is a special court — the **National Environment Tribunal** — whose whole job is to hear you when you say a permit was wrong, and it can **cancel** that permit outright. There's one brutal catch: **the clock**. Once NEMA grants the permit, you've got **60 days** to appeal it to the tribunal — and here's how you actually do it: file a written **notice of appeal** (there's an approved form) in **six copies** with the National Environment Tribunal in Nairobi, stating the decision you're challenging, its reference number and date, and your grounds, with the NEMA decision and your evidence attached and NEMA served. One trap: filing does **not** freeze the project, so ask the Tribunal for a **stay order** to stop work while your case is heard. Miss that 60-day window and you've likely lost your best weapon, which is why gathering your papers and getting a lawyer *early* matters so much. This is the exact route Save Lamu took, and in 2019 the tribunal did exactly what it's built to do: it cancelled the coal plant's permit because the study was inadequate and the consultation was hollow, and ordered anyone reviving the project to start the study over. The lesson is sharp and simple — **when a permit stands on a bad study or a fake consultation, the tribunal can knock it down, and that's often your fastest, hardest-hitting move**. And you don't have to clear the usual hurdle of proving the project hurts *you* personally: the law lets anyone defending the right to a clean and healthy environment bring the case. (Lose at the tribunal and you can take it on to the Environment and Land Court within 30 days.)

Your Constitutional Right, and the Courts

This is Kenya's most unusual weapon, and it's worth understanding plainly. The Constitution Kenyans wrote in 2010 says, in so many words, that **every person has a right to a clean and healthy environment** — for them and for the generations coming. And it says that **anyone who believes that right is being threatened can go to court to defend it — without having to show it harms them personally**. That last part is huge. In most countries a judge throws you out unless you can prove *you* were injured. In Kenya, any citizen, or any group acting for the public, can bring the case. These cases go to the **Environment and Land Court** — a full court, equal in rank to the High Court — which can order harm stopped, prevented or undone, and which is the court that upheld the Lamu cancellation on appeal. Consultation is protected three times over in Kenyan law — as a core national value binding the whole government, as part of the state's environmental duties, and as a hard requirement of the study process — so when a company skips it, you can hit that failure from three directions at once. Your right to the papers (through the access-to-information law) is what lets you *prove* the failure, and the Constitution's recognition of community land is what backs the community-land law.

Community Land, and Prying Loose the Records

Two more laws put real tools in your hands. The **Community Land Act** says that land your community holds together can't be handed off or used without the registered community's involvement and consent — which makes you a rights-holder at the table, not a bystander watching from the side. And that principle has been backed at the highest level: the **Endorois** people, driven off their land around Lake Bogoria, won a ruling from the **African Commission on Human and Peoples' Rights** that their rights had been violated; the **Ogiek** of the Mau Forest won a landmark judgment from the **African Court** — decisions that say plainly that communities can't just be swept off their ancestral land, whether for a project or even a conservation scheme. Those regional routes are slow and enforcement is uneven, but they're a real front and a powerful thing to invoke. The **Access to Information Act** is the everyday workhorse: write and ask, and the government has to hand over the study, the permit, the record of the meetings — the proof every other move is built on.

The Honest Limits

Straight talk: the tribunal and the courts are real and have killed projects outright — but going to court is uncertain and slow, and a determined company will appeal. Lamu is the lesson both ways: the community won at the tribunal in 2019, but the company appealed, and the win only became solid years later when the higher court backed it. Against a project with an honest study, real consultation and the government behind it, a challenge can lose, and the realistic gains are delay, conditions and safeguards. And that 60-day clock is easy to miss. So use the legal routes — they're among the strongest in Africa — but pair them with your community-land consent, the press and a real campaign, be ready for the appeal, and count a permit cancelled or loaded with conditions, delay, safeguards and exposure as wins right alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents doesn't win anything by itself. You have to aim it — turn what you've gathered into a sharp, specific argument pointed at the right person.

A document becomes a legal defect. Don't just hand over the study — say what's *wrong* with it, and tie it to the exact rule it breaks. *"The law and the Constitution require you to genuinely consult us. You didn't. So this permit is invalid"* — that's the argument that killed Lamu. Or: *"The study ignored our fishery, our health and the climate — it can't legally hold up this permit."*

Your right becomes a court case. *"This project threatens our right — and every Kenyan's right — to a clean and healthy environment, and we don't have to prove personal loss to defend it in court." And: "This is our registered community land. It can't be used without our consent."*

A photograph becomes a caught violation. *"Here's proof they're building in breach of their permit — this place, this date."*

The money becomes leverage. *"This project runs on financiers whose reputations and rules this fight touches — and who've walked away from projects like it before."*

Then match the argument to who's hearing it. To NEMA: the study's defects. To the tribunal: the permit is invalid — filed inside that 60-day window. To the court: the violation of your constitutional right. To the press and the public: the human story — the fishery that dies, the heritage that's lost, the community nobody bothered to ask.

STEP 5: MEDIA STRATEGY

In Kenya, publicity is power. The country has a big, free, combative press, a public that pays attention, and a track record of coverage changing a project's fate. For anything with foreign money behind it, a story reaches the lenders and investors who care about their name. And publicity protects *you* — a community the whole country is watching is much harder to intimidate. Lamu became a national and international cause — the heritage islands, the fishers, a coalition of villages against a billion-dollar coal plant — and that spotlight reached all the way to the plant's financiers.

Lead with people, not paperwork. The story isn't "the environmental study was procedurally deficient." The story is: "the reefs and mangroves our families have fished for generations, and the heritage town that draws the world, are about to be poisoned by a coal plant — and nobody ever really asked us." Use your strongest stuff: the dated photographs, the map of the plant sitting on the fishery and the heritage site, named fishers telling it in their own words, and — where it's true — the fact that a court already threw the permit out once.

Work several audiences at once. Local and national press build pressure in the county town and in Nairobi. Environmental and human-rights networks amplify you and lend weight. International media and the climate movement matter most when there's foreign money, because they reach the banks and insurers. Independent and social media let the community speak in its own voice, in real time. Make it easy for all of them: hand over captioned photos, short accurate summaries, a map, a few gripping interviews.

Two hard rules. Accuracy above everything — a single exaggeration handed to the other side can be used to discredit your whole case. And protect your people: defenders in Kenya have been threatened, so weigh what you put out, shield anyone vulnerable, and let the community decide together what it's willing to say out loud.

EMAILS & LETTERS

Make them your own; keep them short, calm and exact; and keep a copy of everything you send.

8A — Asking NEMA for the study and consultation record.

Subject: Request under the Access to Information Act — environmental study and public-participation record for [project].

"Under the Access to Information Act, we, residents of [place], request the project report, the full environmental study, the record of the public consultation, and the permit and its conditions for [project] at [location]. As affected people we're entitled to these. Please send them within the 21 days the law allows, or state the legal reason you can't. [Contact.]"

8B — Asking the county for approvals and land papers.

Subject: Request for approvals and land documents — [project].

"Under the Access to Information Act, we request the county planning and land-use approvals for [project], the land documents including any use of community or public land at [location], and any protected-area designations that apply. [Contact.]"

8C — Speaking up during the consultation.

Subject: Public-participation submission and objection — [project].

"We, residents of [place], object to [project]: [the study fails to assess our fishery / water / health]; [this consultation never genuinely reached or heard us]; [this is on our community land / a protected or heritage area]. We ask that these be recorded and answered, and the permit refused or a proper study required. [Attach evidence.]"

8D — Asserting your community-land consent.

Subject: Community land and consent — [project] at [location].

"The land [project] affects is our registered community land. Under the Community Land Act, our involvement and consent are required for decisions about it. We have not consented, and we call on you to halt the project until our community decides. [Attach evidence.]"

8E — Telling a lawyer to appeal to the tribunal.

Subject: Appeal against the permit for [project].

"We want to appeal the permit granted to [project] on [date] to the National Environment Tribunal, within the time the law allows, on the grounds that [the study was inadequate / the consultation was a sham / key impacts were ignored]. Please advise and move fast — the window is short. [Attach the permit, the study, the consultation record and our evidence.]"

8F — Telling a lawyer to take it to court.

Subject: Constitutional case — right to a clean and healthy environment, [project].

"We instruct you to petition the Environment and Land Court, on the ground that [project] threatens our right, and the public's right, to a clean and healthy environment, and that we don't have to show personal loss to bring it. We're seeking orders to [halt / review] the project. [Attach evidence.]"

8G — A letter to the press.

Subject: [Community] moves to protect [coast / forest / land] from [project].

"For generations the people of [place] have fished the reefs and mangroves of [location] and lived from [land/water]. Now [project], by [company], [financed by ...], threatens to [poison the fishery / clear the forest / take the land] — and we were never really asked. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — A letter asking lawyers or an environmental group to stand with you.

Subject: Request for support — [project] at [location].

"Our community is facing [project] on [our coast / community land / forest]. We've gathered [the study, the permit, the consultation record, photographs, testimonies] and we think a tribunal appeal and a constitutional case both apply. We're asking for your legal and technical help and help getting the story out, and we're ready to work as partners. [Contact and a summary of what we have.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone has months and a lawyer on day one. If you have to move fast and lean, do these six things, in this order, and you'll have done the most important work:

1. Nail down the project and where it sits. Who's behind it, what it is, where its edges are. Lay it — even roughly — over the fishery, your community land, the forest, the protected or heritage area. If it touches your land or a protected place, you may already be holding your strongest card.

2. Demand the records. Fire off access-to-information requests for the study, the consultation record, the permit and the approvals (8A/8B). That both gathers your proof and puts officials on notice you're watching.

3. Photograph everything, with dates and places. The site, the clearing, the shoreline, the mangroves, the villages. Pictures before the damage matter most, and they cost nothing.

4. Speak up in the consultation, in writing (8C); if it's community land, assert your consent (8D).

These aren't just protest — they're formal legal acts, and a fake consultation is fatal to a permit.

5. Watch the 60-day clock and get a lawyer (8E/8H). You have 60 days from the permit to appeal to the tribunal — a written notice of appeal, six copies, filed in Nairobi, plus a request for a stay order so work stops meanwhile. Public-interest lawyers like Katiba Institute or Natural Justice, or free aid from Kituo cha Sheria, move faster than you can alone.

6. Raise the alarm and find your movement (8G). Kenya's campaigns have fought coal, mines and dams and know the road — and a national campaign carries your story far past your own village.

Even lean, those six create a record, use your legal rights, protect the appeal window, and start a coalition — the ground everything else stands on.

WHEN THE SYSTEM IS TILTED

A lot of this guide assumes the machinery works — honest studies, real consultation, tribunals that decide and rulings that stick. In Kenya, plenty of times, it doesn't. Here's how to fight when the field's tilted against you.

When the government wants the project built. This is Kenya's classic problem — not a missing law but a state determined to see its flagship rise, exactly like the Lamu coal plant, whose permit got handed out over every objection and whose defeat took years. The answer isn't to fold. It's to settle in for a long fight and use the law's full weight — the tribunal, your constitutional right, the courts, the appeal — keep the coalition together through every round, and turn the government's backing of a flawed project into a public and political cost it has to pay.

When the consultation is a sham. A notice nobody saw, a meeting held far away or in the wrong language, a record that ignores every objection raised — that's not a reason to walk away, it's a defect to nail down. Kenyan courts treat real consultation as a legal must, not a box to tick, and a fake one can sink a permit, like it did at Lamu. So take part fully, in writing, and document *exactly* how the consultation failed — that documentation is itself a weapon.

When officials won't act. Escalate, step by step. Put everything in writing so the failure is on the record (the access-to-information law is your friend here). Take a bad permit to the **tribunal** inside the window, and a threatened right to the **Environment and Land Court**, which anyone can approach. Use the **National Environment Complaints Committee** (free) for official foot-dragging; and where a public body is sitting on your records or ignoring you, the **Commission on Administrative Justice / Ombudsman** can order it to act. And make the failure public — an official who ignores a quiet letter often moves fast when the story's on the front page and the movements are watching.

When to be honest about the odds. Against a state-backed project with an honest study, a clean permanent kill may not be in reach — and saying so out loud isn't giving up. The wins still worth fighting for: a permit sent back or loaded with conditions, delay that runs up the cost and rattles the financing, safeguards and compensation, and exposure. Never underrate delay: a big project held up for years by a stubborn community is one whose costs climb, whose money can dry up, whose champions can move on — and that endurance is often the thing that finally wins when the law won't hand you a clean stop.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S BOUGHT

Sometimes the problem isn't laziness — it's corruption. A permit that should never have been signed. A study written to order. An official with a stake in the outcome. Land steered to someone's friend. Big energy, mining and infrastructure projects are soaked in this risk.

How to spot it. A permit granted over a study that's plainly garbage. A consultation rigged to keep the affected people out. A study that reads like the company wrote it. An official who keeps sliding between the regulator and the industry. Land or a contract that happens to benefit a well-connected party. A friendly official who suddenly flips. Costs that don't add up and procurement nobody can see into.

Who's supposed to guard against it. Kenya has machinery for exactly this. The **Ethics and Anti-Corruption Commission (EACC)** investigates graft — you can report to it directly — and permits, procurement and land are notoriously dirty. The **Office of the Auditor-General** digs into public money and public-private deals. The **access-to-information law** lets you pull the record and expose the rot. The **tribunal and the courts** can cancel a permit poisoned by illegality. And **investigative journalists** have exposed fake studies and rigged deals again and again. That's where evidence of corruption should go.

How to fight it without getting hurt. This takes more care than an ordinary campaign. Document hard and document straight — dates, decisions, documents, connections — and always keep clear the line between what you can *prove* and what you *suspect*. Don't make public accusations you can't back up; defamation suits have been used to silence Kenyan campaigners. Route serious evidence to the proper bodies and to

trusted journalists instead of squaring off against powerful people alone. Protect the people who help you, especially insiders and witnesses. And lean on your allies — public-interest lawyers and human-rights groups know how to handle this kind of material and can shield the individuals involved.

INTEGRATION & TIMELINE

Don't run these steps one after another like a checklist. Run them together — they feed each other. The documents build your proof; pinning down the project aims it; organizing builds the muscle; the legal challenges press the tribunal and the courts; the media runs up the cost and reaches the money. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project and its footprint; fire off the access-to-information requests; photograph the baseline before anything's wrecked; speak up in any open consultation in writing; assert your community-land consent; get a lawyer *before* that 60-day window closes; and build your core group.

In the thick of it (months): appeal a bad permit to the tribunal; prepare the constitutional case; deepen the coalition and the expert firepower; open the media and financier fronts.

The long haul (months to years): carry the case through the appeal; keep the pressure and the public campaign alive; hold the line for a cancellation, real conditions, delay, safeguards or an outright stop.

FINAL ASSESSMENT

Stopping a destructive project in Kenya can be done — a few fishing villages once beat a billion-dollar coal plant in Kenya's own courts — and the same fight is honest about the price: years of endurance against a government that wanted it built. Hold both of those at once. Kenya's tools are real and unusually strong: a constitutional right any citizen can defend in court without proving personal loss; a consultation requirement whose breach can sink a permit; a tribunal that can tear a permit up and a court built to back it; laws protecting community land and forcing out the records; and a loud civil society and free press. And the obstacles are just as real: a state that backs its flagships, studies sometimes rushed or bought, and genuine risk to the people who resist.

Here's the discipline that wins. Dig out the study's defects and pry loose the records. Use the consultation and your constitutional right. Appeal a bad permit to the tribunal inside the 60 days. Assert your community-land consent. Turn the press, the public and the financiers up loud. And brace for a long fight, counting a permit cancelled or loaded with conditions, years of delay, real safeguards and public exposure as wins right beside a clean kill. That's exactly what Save Lamu did — a local community, a national campaign and public-interest lawyers, all pulling together — and they turned a worry on a remote coast into a ruling the whole country now stands on. So can you.